

24NNCV03330 24NNCV03330

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[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION FOR
ATTORNEY'S FEES IN THE AMOUNT OF \$18,690.49

I. INTRODUCTION

This is a Song-Beverly Consumer Warranty Act action arising from Plaintiffs' purchase of a 2022 Cadillac Escalade. Plaintiffs Chi Hun Park and Forest of Money, Inc. ("Plaintiffs") alleged that the Subject Vehicle suffered from defects that Defendant General Motors LLC ("Defendant" or "GM") failed to repair after a reasonable number of opportunities. The parties resolved the action through a Code of Civil Procedure section 998 offer, under which Plaintiff is the prevailing party and entitled to seek reasonable attorney's fees and costs pursuant to Civil Code section 1794(d).

On June 12, 2026, Plaintiff filed the instant motion seeking \$20,806.00 in attorney's fees and \$1,509.49 in costs. On June 24, 2026, Defendant filed an opposition challenging the reasonableness of the requested fees and costs, and on June 30, 2026, Plaintiff filed a reply.

II. LEGAL STANDARD

Attorneys' fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc, § 1033.5, subd. (a)(10)(B).) In a lemon law action, costs and expenses, including attorney's fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794(d).) Section 1794 provides:

"If the buyer prevails in an action

under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794 [emphasis added].) Thus, the statute includes a "reasonable attorney's fees" standard.

The attorney bears the burden of proof as to "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5(c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) "Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (*Id.*)

A plaintiff's verified billing invoices are prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (See *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated to not suffice." (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488, quoting *Premier Med. Mgmt. Sys., Inc. v. California Ins. Guarantee Ass'n* (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (*Horsford*, supra, 132 Cal.App.4th at 395.)

In determining a reasonable attorney fee, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*) These facts include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. (*Ibid.*)

III. ANALYSIS

Entitlement to Attorney's Fees

Plaintiffs seek \$20,806.00 in attorney's fees and \$1,509.49 in costs pursuant to Civil Code section 1794(d). The parties resolved this matter through a Code of Civil Procedure section 998 offer, which Plaintiff accepted on October 14, 2025. Under the terms of the settlement, Plaintiff is the prevailing party for purposes of Civil Code section 1794(d) and is entitled to recover reasonable attorney's fees, costs, and expenses as determined by the Court.

Thus, Plaintiff is the prevailing party and entitled to reasonable attorney's fees.

Reasonableness of Fees

Reasonable Hourly Rate:

To calculate a lodestar amount, the Court must first determine whether the hourly rates sought are reasonable. A reasonable hourly rate is that prevailing in the community for similar work performed by attorneys of comparable skill and experience. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133.)

Here, Plaintiff seeks compensation at an hourly rate of \$500 for attorney M. Nicholas Nita. Counsel declares that he has practiced law since 2002, has litigated thousands of consumer warranty matters, and has devoted his practice primarily to lemon law litigation. Counsel further submits prior California trial court orders approving comparable hourly rates in similar Song-Beverly matters.

Defendant argues the requested rate is excessive because this was a routine Song-Beverly action and Plaintiff failed to establish the prevailing market rate through competent evidence. Defendant further contends the case involved no novel issues, dispositive motions, or trial.

The Court is not persuaded. While this matter did not proceed through trial, the relevant inquiry is counsel's

experience and the prevailing market rate, not solely the complexity of the individual case. In light of counsel's more than two decades of experience litigating consumer warranty actions and the evidence submitted regarding prior fee awards, the Court finds the requested hourly rate of \$500 reasonable.

Reasonable Hours Incurred:

The party seeking fees and costs bears the burden to show "the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

Here, Plaintiff seeks compensation for approximately 56.2 hours of work performed in prosecuting this action, including investigation of the claim, drafting pleadings, written discovery, discovery responses, case management, settlement efforts, trial preparation, and preparation of the instant fee motion. Plaintiff supports the request with detailed billing records. (Nita Decl.; Exh. A)

Defendant raises several objections to the requested hours. The Court addresses each below:

Pre-engagement
work: Defendant contends the 1.8 hours (\$510) billed before Plaintiffs formally retained counsel constitute nonrecoverable overhead. (Opposition, p. 4.) The Court disagrees. Counsel's pre-filing investigation and evaluation of Plaintiffs' claims were reasonably necessary to the prosecution of this action, and Defendant cites no authority establishing that such work is categorically unrecoverable. Thus, no reduction is warranted.

Templated
work: Defendant argues that the time billed preparing the Complaint, discovery responses, expert designation, motions in limine, and trial documents is excessive because those documents were largely templated and substantially similar to filings counsel has used in other Song-Beverly cases. (Id. at pp. 4-5.) The Court disagrees. The use of templates does not, by itself, render the time expended unreasonable. Even where standardized forms are utilized, counsel must review and revise the

documents to incorporate the facts of the particular case, ensure legal and factual accuracy, and comply with applicable procedural requirements. It would not be unreasonable to conclude that the use of a template can, in some instances, reduce the attorney hours required to handle a particular task. When a lawyer bills \$500 an hour, the old adage about not reinventing the wheel seems to make sense.

Motion

for attorney's fees: Defendant argues that the 10.6 hours billed preparing the instant fee motion are excessive and the Court agrees in part. While Plaintiff is entitled to recover reasonable fees incurred in preparing and litigating a fee motion, the Court finds that 10.6 hours is excessive under the circumstances, especially given how routine these motions are. GM asks for an 8.1 hour reduction, however the court finds that unreasonable. Instead, the Court exercises its discretion to reduce the compensable time for preparation and litigation of the instant fee motion to 6.0 hours. At the approved hourly rate of \$625, the Court awards \$3,750 for this category of work.

Clerical

work: Defendant argues that 9.3 hours billed by paralegals, legal assistants, and support staff for tasks such as calendaring, filing, scanning, preparing folders, and processing documents constitute nonrecoverable clerical work. The Court agrees in part. Purely clerical or secretarial tasks are not compensable at an attorney's or paralegal's hourly rate. (*Missouri v. Jenkins* (1989) 491 U.S. 274, 288, fn. 10.) Courts have likewise recognized that tasks such as calendaring, preparing proofs of service, internal filing, hearing binders, and scanning are clerical in nature. (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187; *Ridgeway v. Wal-Mart Stores Inc.* (N.D. Cal. 2017) 269 F.Supp.3d 975, 991.) In reply, Plaintiff argues that Defendant fails to identify the specific billing entries it contends are clerical and instead broadly challenges 9.3 hours billed by multiple timekeepers at different billing rates. The Court agrees that many of the challenged entries reflect both clerical and substantive litigation tasks, such as communicating with clients and obtaining discovery responses. Thus, rather than disallowing all 9.3 hours, the Court exercises its discretion to reduce the requested fees by 3.0 hours at \$250 per hour, for a total reduction of \$750.

Costs

A prevailing buyer under the Song-Beverly Act is entitled to recover reasonably incurred costs and expenses. (Civ. Code, § 1794(d).) Here, Plaintiff is requesting \$1,509.49 in costs.

Defendant challenges the jury fee, electronic filing fees, and mediation fee. The Court is not persuaded. The \$150 jury fee was reasonably incurred to preserve Plaintiff's right to a jury trial, notwithstanding the parties' pretrial settlement. Plaintiff also adequately identifies the \$482.13 in electronic filing fees as mandatory litigation expenses incurred in this action, and Defendant offers no evidence that they were unnecessary or unrelated to this case. Finally, the \$300 mediation fee was reasonably incurred in connection with mediation, which assisted in resolving the matter before the Final Status Conference. Defendant cites no authority establishing that any of these costs are unrecoverable. Accordingly, the Court awards Plaintiff the requested \$1,509.49 in costs.

The Court reduces the requested attorney's fees by a total of \$3,625 (\$750 for clerical work and \$2,875 for excessive time spent preparing the instant fee motion), resulting in an attorney fee award of \$17,181.00. The Court further awards Plaintiff \$1,509.49 in costs, for a total award of \$18,690.49.

IV. CONCLUSION AND ORDER

The Court GRANTS Plaintiff's motion for attorney's fees and costs. Plaintiff is awarded \$17,181.00 in attorney's fees and \$1,509.49 in costs, for a total award of \$18,690.49.

Plaintiff is to give notice.

Dated: July 8, 2026

JARED D. MOSES
JUDGE OF THE SUPERIOR COURT